

Committee name: Licensing

Committee date: 05/03/2026

Report title: Draft Statement of Licensing Policy under the Licensing Act 2003.

Portfolio: Councillor Giles, Cabinet member for planning and regulatory services

Report from: Regulatory Services Manager

Wards: All wards

OPEN PUBLIC ITEM

Purpose

For members to consider the revised draft Statement of Licensing Policy in respect of alcohol, regulated entertainment and late night refreshment under the Licensing Act 2003 and to recommend to Cabinet for consultation for 12 weeks from 11th May 2026 to 7th August 2026.

Recommendation:

That members recommend the revised draft Statement of Licensing Policy to cabinet for public consultation.

Policy framework

The council has five corporate priorities, which are:

- A prosperous Norwich.
- A fairer Norwich.
- A climate responsive Norwich.
- A future-proof Norwich.
- An open and modern council.

This report meets the A prosperous Norwich and A fairer Norwich corporate priorities.

Report details

1. This report presents proposed amendments to Norwich City Council's Statement of Licensing Policy, as required under the Licensing Act 2003.
2. The Licensing Act 2003 requires each Licensing Authority to prepare, consult on and determine a Statement of Licensing Policy. The policy must be kept under review on an ongoing basis, and in any case every five years. The current policy was adopted by Council in December 2021.
3. The legislation requires that where revisions are made, the licensing authority must publish a statement of the revisions or the revised licensing policy.
4. The policy explains how Norwich City Council (the Licensing Authority) applies the Licensing Act 2003. It tells licence holders how to obtain a licence, what conditions may apply, and how we regulate licensing in the city.
5. It also provides the general approach that Norwich City Council will take in terms of determining all licences under the Licensing Act 2003 with the overriding aim of promoting the four licensing objectives:
 - The prevention of crime and disorder
 - Public Safety
 - The prevention of public nuisance
 - The protection of children from harm
6. A draft statement of licensing policy has been prepared and is attached as Appendix A.
7. The policy has been reviewed by officers working with a solicitor specialising in licensing law.
8. A summary of the changes is attached at Appendix B. The proposed changes include clarifications, reflect changes in legislation and in national guidance.
9. Following consultation, the Statement of Licensing Policy is required to be approved by Full Council.
10. Members are asked to review the draft Statement of Licensing Policy and to recommend to cabinet for consultation to begin. It is proposed that the consultation will run for 12 weeks from 11th May 2026 to 7th August 2026.
11. Following formal consultation, the policy will return to Licensing committee for review, before being referred to full council for final approval.
12. After formal adoption by council, the policy will remain in force for a five-year period after which time it must be reviewed and formally adopted for a further five-year period.
13. During this five-year period, the licensing authority can make such revisions to their policy, at such times as considered appropriate, following a further consultation exercise.
14. Failure to adopt and publish a Statement of Licensing Policy means that the authority would not be complying with the Licensing Act 2003 and would leave

any decisions made by the Licensing Authority open to challenge, along with the potential to damage to its reputation.

Current licences

Premises licences	677
Club premises certificates	9
Personal licences	1963

15. There were also 225 temporary event notices received by the authority from January to December 2025.

Cumulative Impact Assessment

16. Prior to April 2018 licensing authorities were able to include within their Statement of Licensing Policy a special policy on cumulative impact. Norwich City Council adopted such a policy in 2015, but it was removed in the next policy review due to legislative change.
17. The introduction of the Policing and Crime Act 2017 in April 2018 altered the standing of cumulative impact, changing it from being something that previously could be included within the Statement of Licensing Policy, to a standalone consideration, known as a Cumulative Impact Assessment (CIA).
18. A CIA may be published by a licensing authority to help limit the number or types of licence applications granted in areas where there is evidence to show that the number or density of licensed premises in the area is having a cumulative impact and leading to problems which are undermining the licensing objectives.
19. CIAs relate to applications for new premises licences and club premises certificates and applications to vary existing premises licences and club premises certificates in a specified area. It cannot be applied retrospectively. Where an authority publishes a CIA, this must be reviewed after 3 years.
20. A CIA needs an evidential basis to have such a requirement in place. A cumulative impact assessment is being considered separately and will run in parallel to the consultation on the Statement of Licensing Policy.
21. A CIA may only be introduced where supported by evidence, ensuring lawful and proportionate use.

Consultation

22. As part of the process the draft revised Policy must be consulted on before its adoption by Council. Section 5(3) of the Licensing Act 2003 prescribes a list of those persons that the Licensing Authority must consult. Those are:
- the Chief Constable for Norfolk Constabulary
 - the Norfolk Fire and Rescue Service
 - persons/bodies representative of local holders of premises licence
 - persons/bodies representative of local holders of club premises certificates
 - persons/bodies representative of local holders of personal licences

- persons/bodies representative of businesses and residents in the area, and
 - the Director of Public Health, Norfolk County Council
23. Beyond these statutory requirements it is for each licensing authority to decide the full extent of its consultation and whether any particular person or body is representative of the group described in the statute.
24. The Responsible Authorities under the Licensing Act 2003 and members will also be consulted.
25. The council will use the website, social media and trade representative bodies, to advise licence holders, stakeholders and the public that this consultation is underway.
26. It is proposed that the review of the Policy process will be as follows if recommended to Cabinet for consultation by the Committee:
- Consultation of the draft revised Statement of Licensing Policy will take place between 11th May 2026 to 7th August 2026.
 - Feedback received will be presented to the Licensing Committee meeting on 17th September 2026 along with any recommendations for amendments or changes to be made. Agreement will be sought at this meeting from the Licensing Committee to recommend the adoption of the Policy to Full Council.
 - It is proposed to take the draft revised Policy to Full Council in November 2026 for ratification to be adopted by 1st December 2026 before expiry of our current policy.

Implications

Financial and resources

27. Any decision to reduce or increase resources or alternatively increase income must be made within the context of the council's stated priorities, as set out in its community-led plan "We are Norwich" and budget.
28. There are no proposals in this report that would reduce or increase resources.

Legal

29. Legal implications:

- The Licensing Act 2003, section 5 requires that each Licensing Authority prepares, consults on and determines a Statement of Licensing Policy.
- That policy must be kept under review on an ongoing basis, and in any case at least every five years.

Statutory considerations

Consideration	Details of any implications and proposed measures to address:
Equality and diversity	An Equality Impact Assessment (EqIA) has been completed alongside the review of this policy.
Health, social and economic impact	Consultation with stake holders including the Director of Public Health.
Crime and disorder	Norfolk Constabulary are a consultee on the Policy. There are criminal offences under the Licensing Act 2003 and so the Policy will help businesses comply with the law
Children and adults safeguarding	The revised policy sets out how the Authority expects applicants to include safeguarding of children and the vulnerable under the Licensing Act 2003.
Environmental impact	The Act requires the Licensing Authority to carry out its function with a view to promoting the four licensing objectives, one of which is the prevention of public nuisance, to protect the local environment and community.

Risk management

Risk	Consequence	Controls required
Compliance	Licensing responsibilities not correctly discharged	Up to date policy framework with public consultation. Legal advice on policy and at meeting
Reputational risks to the council	Risk of challenge if non-compliant	Legal advice on policy and at meeting

Other options considered

30. Do nothing. This is not a viable option as this would mean no consultation, the process would be stopped and there would be no Policy from December 2026. The Council has no discretion as to making the Norwich City Council Statement of Licensing Policy (Licensing Act 2003), although there is some discretion as to the content of the Policy.

31. Approve the proposed draft Policy for consultation – without changes

32. Approve the proposed draft Policy for consultation with changes.

Reasons for the decision/recommendation

33. The recommendation is for the draft statement of licensing policy to begin a period of consultation to comply with statutory requirements, to gain diverse

opinions, increase transparency, identify potential issues early and ensure the policy reflects the needs of the city.

34. The reason for this is to ensure that Norwich City Council, acting as the Licensing Authority, can meet its statutory duties under the Licensing Act 2003 and have a clear, transparent and robust policy in place.

Background papers:

Current statement of [Licensing Policy December 2021](#)

[Licensing Act 2003](#)

[Revised guidance issued under section 182 of the Licensing Act 2003 \(February 2026\) \(accessible version\) - GOV.UK](#)

[National Licensing Policy Framework for the hospitality and leisure sectors \(web version\) - GOV.UK](#)

Appendices:

Appendix A – draft Statement of Licensing Policy under Licensing Act 2003

Appendix B – summary of changes between current and draft policies

Appendix C – Equality Impact Assessment

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